



The Journal for Cultural and Religious Theory (JCRT)

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The Just

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MacCammon - Justice and Fundamental Anthropology - JCRT 3.1

Justice and Fundamental Anthropology: Uncovering Essential Connections with Paul Ricoeur

A Review of Paul Ricoeur, *The Just*. Translated by David Pellauer. Chicago: University of Chicago Press, 2000.

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Originally presented as a series of invited lectures on the nature of justice, Paul Ricoeur's latest collection of essays serves as an indispensable companion piece to the "little ethics" he developed in *Oneself as Another*. In this slim and tightly argued volume, Ricoeur offers an extended consideration of justice from a teleological perspective, engaging the work of Plato, Aristotle, Kant, John Rawls, Hannah Arendt, and others to develop his scheme. As stated in the Preface, the purpose of these reflections is to overcome philosophy's general negligence of justice as a concept. Ricoeur explains that since the Enlightenment justice has received little attention because of philosophy's understandable preoccupation with the historical reality of evil. Ethics and politics became the primary subjects of philosophical reflection while justice was relegated to the juridical. But in neglecting the concept of justice, Ricoeur argues that we have lost sight of two of its most crucial aspects. First, we have overlooked its affective roots. Reiterating the argument of *Oneself as Another*, Ricoeur contends that justice does not spring primarily from a deontological sense of duty, but is an integral part of the ethical intention *to live a good life with and for others in just institutions*. In his words, the just "is first an object of desire, of a lack, of a wish. It begins as a wish before it is an imperative" (xv). Second, Ricoeur claims we have lost sight of the primary goal of justice, which is peace—not vengeance or compensation as is commonly believed and practiced. The ten essays thus represent Ricoeur's attempt to "do justice to justice," to illuminate the embedded nature of the concept, and to show that peace is indeed the final destination of the just.

> \[It is in the experience of imputation\] that the notion of a capable subject reaches its height. Esteem and self-respect define the ethical and moral dimension of selfhood, to the extent that the juridical imputation (4).

But while agency, narrative identity, and imputation are crucial to the notion of a capable subject, Ricoeur's long-held conviction that the "who" of the subject of rights can't be developed apart from social mo-

> ...the law of responsibility, in the technical sense of the term, has tended to make room for

> \[The verdict\] brings an end to uncertainty; it assigns the parties in the trial places that

Thus, the injured party's initial thirst for vengeance is suspended by the judge who opens up the possibility of esteem and self-respect. In the majority of cases, prison time produces more rage than peace. The

> \[Although pardon is never owed\] it is still not without an end. And this end has to do with

Thus, Ricoeur understands justice as a peace that reestablishes the originary distance between

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Updated 07/28/21.
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